

THE EMPLOYMENT (RECORD OF SERVICES) FEDERAL CAPITAL RULES, 1956.

No. LR-19(2)53, dated the 8th November, 1956.—In exercise of the powers conferred by section 12 of the Employment (Record of Services) Act, 1951 (XIX of 1952), the Central Government is pleased to make the following Rules, the same having been previously published as required by the said section :—

EMPLOYMENT (RECORD OF SERVICES) FEDERAL CAPITAL RULES, 1956.

RULES

1. Short title and extent.—(1) These Rules may be called the Employment (Record of Services) Federal Capital Rules, 1956.
- (2) They extend to the Federal Capital.

2. **Definitions.**—In these Rules, unless there is anything repugnant in the subject or context,—

- (a) "Act" means the Employment (Record of Services) Act, 1951 (XIX of 1952) ;
- (b) "Form" means a form appended to these Rules ;
- (c) "Section" means a section of the Act ;
- (d) "Inspector" means an officer authorized by the Labour Commissioner under section 7 and rule 14 ;
- (e) words and expressions used in the Act and not defined in these Rules shall have the same meanings assigned to them in the Act.

3. **Service Book.**—Each employee shall have a Service Book which shall be in form 'A' and maintained by the employer.

4. **Size and Division of Service Book.**—A Service Book shall be of 6"×4" in size and shall contain 50 printed pages of durable paper with covering page of card board and rexin.

The pages other than the covering pages of Service Book shall be divided into following parts for recording the particulars :

Part I.—Particulars of identification of the employee 3 pages—to be noted in form A1, A2 and A3.

Part II.—Particulars of employers to be noted in Form A4 and A5.

Part III.—Record of service and rate of wages to be noted in Form A6 and A7.

Part IV.—Record of leave to be noted in Form A8.

Part V.—Record of conduct to be kept in Form A9.

5. **Supply of Service Book.**—The employer shall, at his own cost, provide the employee with a Service Book immediately after the commencement of his employment, in case the employee does not already have a Service Book. The cost of photograph to be attached to the Service Book shall also be borne by the employer.]

6. **Appointment of vendors.**—The Labour Commissioner shall, from time to time, appoint for specified areas authorized vendors who shall thereupon be competent to manufacture with the approved quality of paper, the design of covering page and the number of pages and sell forms and Service Books. Wholesale or retail in such area at a price which shall also be fixed by the Labour Commissioner. The Labour Commissioner shall be competent to cancel the appointment of any vendor and to revise the sale price of the Service Books.

7. **Deposit of Service Book and its receipt.**—As soon as a Service Book is deposited by an employee, the employer shall give him a receipt in Form 'B'.

8. **Duplicate Service Book.**—Where there is an agreement under sub-section (4) of section 4 of the Act for the employee to keep a duplicate copy of the Service Book in his custody the agreement shall be noted in Service Book by the words "Duplicate copy kept with employee" and signed or authenticated by the thumb impression of the employee.

¹ Sub., for Rule 5, by Notif. No. S.R.O. 914(K), dated the 21st July, 1960, see G.S. of P., 1960, Pt. I, p 324.

9. Entries in Duplicate copy.—All entries shall be made in the duplicate copy of the Service Book, if kept, at the same time when an entry is made in the original Book and the employee shall be bound to produce the duplicate copy within 24 hours of being asked to do so by the employer, for such purpose. Unless the duplicate copy is returned immediately after the necessary entry has been made a receipt in form 'B' shall be given by the employer to the employee.

10. Thumb impression in case of illiterate employee.—In case of an illiterate employee he shall put his left thumb impression against all entries in the Service Book or in the duplicate copy whenever he is required to authenticate the same by his signature.

11. Entries in Service Book.—In the case of a new appointment or a fresh issue of a Service Book entries concerning particulars of the employee in the Service Book shall be made by the employer within one month from the date of appointment or fresh issue of Service Book. Subsequent entries on occasions mentioned in rule 12 shall be made within 15 days of such occurrence.

12. Occasions for subsequent entries.—Subsequent or fresh entries shall be made in Service Book of an employee when—

- (i) his scale of pay or rate of wages has been changed.
- (ii) an increment in his wage rates or pay scales has been allowed.
- (iii) he has been transferred to another branch or job in the same concern or to another establishment under the same employer.
- (iv) he has been granted and has availed of any leave other than casual leave.
- (v) he has been discharged, dismissed or has resigned or retired from employment.
- (vi) any fine or punishment has been imposed or rewarded or commendation given.
- (vii) annual record of conduct and efficiency.

13. Notice of Production of Service Book.—(i) The Labour Commissioner or an officer duly authorized by him shall issue notice in form 'C' to an employer or an employee for production of Service Book, its duplicate copy or other documents or papers which he has reason to believe contain the materials required to be entered in a Service Book.

(ii) The employer or the employee as the case may be shall produce the Service Book or other documents mentioned in the notice referred to in sub-rule (i) within 7 days from the date of the notice.

(iii) All notices shall be sent by post under a certificate of posting.

14. Authorized officers under sections 7, 9 or 10.—The Labour Commissioner may authorize any one or more of the following class of public servants to exercise functions and powers under sections 7, 9 or 10 of rule 13 :—

- (i) Labour Inspectors in their respective jurisdictions.
- (ii) A gazetted officer of the Labour Directorate for area as may be specified.
- (iii) Any other gazetted officer.

15. Sanction.—(i) Sanction for prosecution shall be given by the Labour Commissioner in form 'D'.

Notice for explanation or defence.—(ii) Before sanction is accorded the Labour Commissioner shall notify the persons complained against the infringement of the provisions of the Act or the rules with which he is charged and shall allow him to submit his explanation or defence either orally or in writing to the Labour Commissioner or to an officer named by him for the purpose in the notice. The notice shall be in form 'E' and issued under a certificate of posting.

(iii) The person complained against shall submit his explanation or defence within 7 days from the date of receipt of the notice.

(iv) If in terms of the notice explanation or defence is submitted to an officer other than the Labour Commissioner that officer shall forward recorded explanation or defence together with his recommendation to the Labour Commissioner for issue or otherwise of the sanction for prosecution within 15 days from the date the explanation or defence is produced before him.

16.—(i) All wage rates shall be recorded in terms of month.

(ii) A month shall be deemed to consist of 4.1/3 weeks.

(iii) Monthly rate of wages shall be calculated by multiplying the daily rate by 30 if the weekly rest days are paid for and by 24, if for the rest days no payment is made or by multiplying the weekly rate by 4.1/3.

FORM A

Form of Service Book

(Rules 3 and 4)

FORM A1 (for page 1)

PART I

Particulars of identification of the employee.

1. Name of the Employee.....

2. His father's name [and occupation]

3. His home address ;

Vill.....

P.O.....

P.S.....

Dist.....

4. His present address.....

[5. (a) Nationality.....

(b) Date of arrival in Pakistan.....

(c) Educational and technical qualifications.....]

FORM A2 (for page 2)

PART I.—contd.

[6] Date [and place] of birth.....

[7] Height.....ft.....inches.

[8] Complexion—fair/medium/dark.

[9] Build—thin/medium/stout.

[10] Married or unmarried.....]

Photograph.

(Passport size)

1 Added by Notfn. No. S.R.O. 914(K), dated the 21st July, 1960, see Gaz. of P., 1960, Pt. I, p. 32.

2 Existing entries 5, 6, 7 and 8 renumbered as entries 6, 7, 8 and 9, respectively *ibid*.

3 *Ins. ibid.*

PART I.—*contd.*

[11.] Any other mark of personal identification

[12.] Left thumb impression.

[13.] Date of opening of Service Book,.....

[14.] Signature of employee,.....

[15.] Signature of employer,.....

PHOTO

FORM A4 (for pages 4, 5, 5, 8 and 10)

PART II.—Particulars of employers and employment

Name of employer

Address

FORM A5 (for pages 5, 7, 9 and 11)

PART II.—Particulars of employers and employment

Date of joining

Date of leaving

Signature of employer

FORM A6 (for pages 12, 14, 16, 18, 20, 24, 26, 28, 30, 32 and 34)

PART III.—Record of service and rate of wages

Date of commencement of employment in the present rank,	Rank, post or occupation.	[Rate of monthly wages]		
		Basic	Other allowances and amenities.	Total
		Rs.	Rs.	Rs.

* Existing entries 9, 10, 11, 12 and 13 renumbered as entries 11, 12, 13, 14 and 15, respectively by Nofn. No. S.R.O. 914(K), dated the 21st July, 1960, see Gaz. of P., 1960, Pt. I, p. 324.

* Subs. for the existing column with the heading "Rate of monthly wages" *ibid.*

Date of termination of employment	Cause of termination.	Signature of employer.	Signature or thumb impression of employee and date.

FORM A8 (for pages from 36 to 43)

PART IV.—Record of leave

Period and kind of leave	If with pay whether full/half/quarter.	Date of return from leave.	Signature of employer	Signature or thumb impression of employee and date.

FORM A9 (for pages from 44 to 50)

PART V.—Record of conduct

Date	Remarks	Signature of employer	Signature or thumb impression of the employee and date.

FORM B

(Rules 7 and 9)

Original

Counterfoil

Serial No.	Date.	Serial No.	Date.
Received from.		Received from.	
1. Name.		1. Name.	
2. Rank, Post or Occupation.		2. Rank, Post or Occupation.	
3. Address.		3. Address.	
His/her service book for fresh and/or subsequent entries (i) and safe custody.		His/her service book for fresh and/or subsequent entries (i) and safe custody.	
Signature of employer.		Signature of employer.	
Designation	Seal of the employer, if any.	Designation	

(c) The words "and safe custody" to be struck off in case of duplicate copy of the service book.

(c) The words "and safe custody" to be struck off in case of duplicate copy of the service book.

FORM C

[Rule 13(i)]

Notice for production of Service Book or other documents

To

Dated.....195

.....

 is requested to produce the Service Book of (name).....
 (Rank, post or occupation)..... its duplicate copy, if any, and other documents and papers as noted below within 7 days from the date of this notice.

(1).....

Signature.....

(2).....

Designation.....

(3).....

Address.....

(4).....

FORM D

[Rule 15 (i)]

Sanction is hereby accorded under section 9.....

..... for prosecuting.....

the following infringements for which a complaint was lodged with the undersigned on.....

(1).....

(2).....

(3).....

(4).....

Labour Commissioner,
 Government of

FORM E

[Rule 15 (ii)]

Notice for submission of explanation or defence

.....
 Notice is hereby given that (Name).....
 has been complained against infringement of the provision of the Act or the rules as noted below

by (Complainant).....on (date).....
.....

He may submit his explanation or defence, if any, either orally or in writing to the undersigned or to.....within 15 days from the date of notice.

(1).....

(2).....

(3).....

(4).....

Labour Commissioner,
Government of